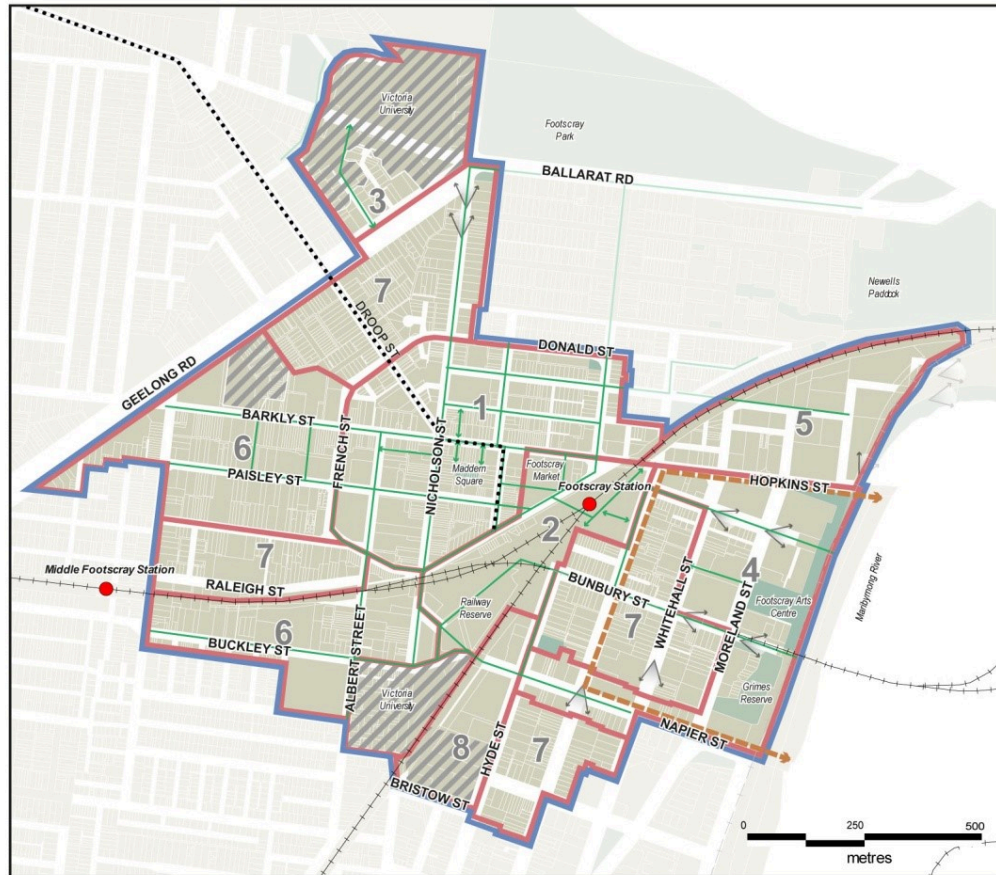


SCHEDULE 1 TO CLAUSE 37.08 ACTIVITY CENTRE ZONE

Shown on the planning scheme map as ACZ1.

FOOTSCRAY METROPOLITAN ACTIVITY CENTRE

Footscray Framework Plan



LEGEND

- | | |
|--|--|
| Rail Station & Line | Existing Tram Line |
| Activity Centre Boundary | Proposed Tram Line |
| Precinct Boundary & Number | Existing & Proposed Pedestrian Network |
| Areas Excluded From the Activity Centre Zone | Striking Long Views |
| Open Space | |



Land use and development objectives to be achieved

Housing

- To facilitate a significant proportion of the new housing required to meet the projected population growth to be developed within the Footscray Metropolitan Activity Centre (FMAC).
- To encourage housing to locate above commercial uses to create a mix of land uses.
- To support increased residential densities in line with the precincts identified level of change.
- To encourage housing intensification in areas with the greatest capacity for change.
- To provide for housing growth by providing a mix of housing types that includes medium to higher density housing in appropriate locations.
- To provide a diversity of dwelling types, sizes and tenures across the FMAC.
- To encourage appropriate student housing in FMAC.

MARIBYRNONG PLANNING SCHEME

- To encourage affordable housing, including social housing, in the FMAC.
- To ensure new housing developments address potential amenity impacts including noise, vibration and emissions and implement measures to attenuate any adverse impacts for future residents.
- To ensure housing is adequately serviced by physical and community infrastructure.
- To improve the environmental performance of new dwellings.
- To encourage high quality design outcomes that will provide high internal and external amenity for future residents.

Economic Development

- To attract a broad mix of employment uses that will improve the centre's economic diversity, vitality and sustainability consistent with the role of Footscray as a MAC.
- To create a sustainable retail and services centre that meets the needs of local residents and workers, whilst also being a drawcard for shoppers from the secondary trade area.
- To focus and strengthen retail activity within the core of the centre, including new supermarket and department store based uses, (Precinct 1 and Footscray Market site) and avoid further dispersal of key shopping facilities into other precincts.
- To ensure that retail uses outside of Precinct 1 and the Footscray Market site do not compete with, but serve to complement the centre's core.
- To ensure large format retail uses are integrated into development and provide active street frontages.
- To increase the supply and variety of office space, suitable for a range of businesses, including the provision of affordable floor space for community based organisations, and direct larger offices to locations close to public transport and away from neighbourhood precincts.
- To encourage greater integration of university campuses and students into daily life within the centre.
- To support the expansion of the medical precinct along Paisley Street.
- To encourage the co-location of health and community services and facilities and to encourage child care services to be located with employment services.
- To support development that allows for a flexible use of space.
- To ensure gaming machines are not located in areas that will facilitate convenience gambling.
- To encourage creative industries within the FMAC in particular within the Riverside Precinct.
- To provide a suitable environment for accommodating the projected additional jobs and employment floorspace.

Built form

- To ensure redevelopment contributes to the revitalisation and transformation of Footscray MAC into a vibrant residential, employment and recreation centre.
- To ensure new development is of high architectural and urban design quality.
- To direct site-responsive and sensitively designed higher density development and taller built form to strategically appropriate locations within the centre such as Precincts 2 and 5 (designated as Transformational Change precincts).
- To ensure new development is sensitive to the height, scale, character and proportions of existing valued buildings.
- To provide sufficient separation between buildings above podium heights to ensure access to daylight and sunlight for internal spaces while maintaining visual privacy and a view to the sky.
- To ensure new buildings particularly podiums, align to the street pattern and respect the continuity of street façades and solar access to public spaces.
- To ensure new development does not overshadow existing or proposed open space or pedestrian priority routes between the hours of 10am and 3pm at the equinox.
- To enhance key views and vistas along the Maribyrnong River environs and capitalise on views from the public realm to natural and physical landmarks, including the Melbourne CBD skyline.

MARIBYRNONG PLANNING SCHEME

- To encourage the development of buildings with flexible floor spaces that can accommodate a range of uses over time.
- To ensure development addresses sensitive interfaces through transitional built form envelopes and maintains reasonable solar access to key pedestrian routes and recreational areas, including the Maribyrnong River foreshore.
- To ensure the design of taller built form considers and ameliorates any adverse wind climate conditions.

Heritage

- To recognise, conserve and enhance elements of Aboriginal and post-settlement historical significance.
- To ensure new development appropriately considers and references elements of cultural heritage significance.
- To ensure development adjoining or nearby heritage buildings has regard to the height, scale, rhythm and proportions of the heritage buildings including characteristic fine-grain frontage widths.
- To ensure that built form respects the heritage context and maintains heritage prominence.

Environmentally sustainable design

- To integrate best practice ESD principles into new development at every opportunity, including building energy management, water sensitive urban design, construction materials, indoor environment quality, waste management, transport, and demolition and construction
- To support development that reduces and manages energy consumption and greenhouse gas emissions, and employs active systems for ESD performance that contribute in a significant way to local, national and international efforts to reduce energy usage and green house gas emissions.
- To encourage water conservation, ensuring that water resources are managed in a sustainable way.
- To encourage the provision of landscaping that considers the provision of habitat, green spaces, green roofs and roof top gardens climate control and reduces the 'urban heat island' effect.

Movement & Transport

- To facilitate a balanced, sustainable, efficient and safe transport network within Footscray that encourages walking, cycling and public transport over motorised vehicles.
- To create a truly 'walkable' centre improving overall pedestrian safety, mobility and access.
- To create a 'pedestrian priority zone' in the core of the centre, including continuous weather protection and activation along frontages to designated pedestrian priority routes.
- To complete missing links on significant cycle corridors to and through the MAC.
- To improve connectivity and access to regional walking and cycling trails, key open space, recreation and entertainment facilities.
- To provide improved capacity and safer access to public transport, including upgraded interchanges and stops.
- To ensure integration of public transport services.
- To prioritise public transport on roads where the road is shared with other vehicles.
- To avoid through-traffic within the centre and encourage freight movement onto the existing arterial road network.
- To recognise the particular parking requirements of the Footscray MAC by providing an appropriate supply of car parking within the centre that addresses the needs of all users.

Community Infrastructure

- To increase the provision and range of community infrastructure to meet the present and future demands of the community.
- To provide for new community infrastructure projects.

- To ensure large developments provide some community infrastructure within the development.
- To ensure developers contribute to the provision of community infrastructure.

Open Space and Recreation

- To ensure Footscray's residents, workers and visitors are well served by usable, functional and high quality areas of public open space.
- To ensure new developments contribute to the creation and/or enhancement of public open spaces and the public realm.
- To encourage greater access and connectivity to public open spaces, especially along the Maribyrnong River.
- To ensure new public open space is clearly identifiable for public use when provided in new developments.
- To provide for a greater amount and range of informal recreation activities that are integrated with other residential, retail and office developments within the MAC that provide opportunities for social interaction and meet the needs of different community members.
- To encourage the provision of sports facilities catering for the diverse needs of the community.
- To ensure open space is not overshadowed by new development.

Arts and Culture

- To further develop and promote Footscray as a regional focus for arts and cultural activities.
- To encourage new development to incorporate art in the public domain.

Environment

- To protect the natural features of the MAC especially along the Maribyrnong River.
- To provide for the overall "greening" of Footscray with attractive and consistently landscaped spaces throughout the centre.
- To ensure developments for sensitive uses incorporate design measures to mitigate amenity impacts associated with the operation of other businesses and activities in the centre.

3.0
24/10/2024
C189mari

Table of uses

Section 1 - Permit not required

Use	Condition
Accommodation (other than Dwelling)	Must be located in Precincts 1, 2, 3, 4, or 5.
Automated collection point	Must meet the requirements of Clause 52.13-3 and 52.13-5. The gross floor area of all buildings must not exceed 50 square metres.
Cinema	Must be located in Precinct 1, other than Sub Precinct 1A.
Cinema based entertainment facility	Must be located in Precinct 1, other than Sub Precinct 1A.
Convenience shop	Must be located in Precincts 1, 2, 3, 4, 5 or 6 The use must be located in a tenancy at ground floor level.

MARIBYRNONG PLANNING SCHEME

Use	Condition
Dependant person's unit	Must be located in Precinct 7 or Sub-Precinct 1A
Dwelling	
Education centre	Must be located in Precinct 1, 3, 6 or 8
Food and drink premises (other than Hotel and Bar)	Must be located in Precinct 1 (other than Sub-Precinct 1A), 2, 3, 4, 5 or 6
Home based business	
Hotel	Must be located in Precinct 1, other than Sub Precinct 1A.
Informal outdoor recreation	
Market	Must be located in Precinct 1 other than Sub-Precinct 1A.
Medical centre	Must be located in Precinct 1 or 6
Office	Must be located in Precinct 1 (other than Sub Precinct 1A), 2, 3, 4, 5, 6 or 8.
Postal agency	
Railway	
Railway station	
Restricted retail premises	Must be located in Precinct 5 and with a frontage to Hopkins Street.
Retail premises (other than Convenience shop, Food and drink premises, Gaming Premises, Market and Postal agency, Trade supplies, Landscape gardening supplies and Motor vehicle, boat or caravan sales)	Must be located in Precinct 1 (other than Sub-Precinct 1A) or 2
Shop (other than Adult sex product shop, Convenience shop and Restricted retail premises)	Must be located in Precinct 1 (other than Sub Precinct 1A).
Search for stone	Must not be costeaning or bulk sampling
Any use listed in Clause 62.01	Must meet requirements of Clause 62.01.

Section 2 - Permit required

Use	Condition
Adult sex product shop	Must be located in Precinct 1, other than Sub-Precinct 1A.
Amusement parlour	Must not be located in Precinct 7 or Sub-Precinct 1A
Bar	
Cinema based entertainment facility	Must not be located in Precinct 7 or Sub-Precinct 1A
Convenience Restaurant	The site must adjoin, or have access to, a road in a Transport Zone 2 or a Transport Zone 3.
Hotel	
Industry (other than Automated collection point)	Must not be located in Sub-Precinct 1A or Precinct 7 and must not be for a use listed in the table to Clause 53.10 of the Maribyrnong Planning Scheme.
Nightclub	Must not be located in Precinct 7 or Sub-Precinct 1A
Research and development centre	Must not be located in Precinct 7 or Sub-Precinct 1A
Research centre	Must not be located in Precinct 7 or Sub-Precinct 1A
Restricted retail premises	Must not be located in Precinct 7 or Sub-Precinct 1A
Retail premises (other than Food and drink premises, Market, Postal agency and Shop)	Must not be located in Precinct 7 or Sub-Precinct 1A
Store	If located in Sub-Precinct 1A or Precinct 7 must be in a building, not a dwelling, and used to store equipment, goods, or motor vehicles used in conjunction with the occupation of a resident of a dwelling on the lot.
Transport terminal (other than Airport and Road freight terminal)	
Utility installation (other than Minor utility installation and Telecommunications facility)	
Warehouse (other than Commercial display area, Fuel Depot, Mail centre and Store)	Must be located in Precinct 1 (other than Sub Precinct 1A), 3, 4 or 6 Must not be a purpose listed in the table to Clause 53.10 If located in Precinct 3, must be in conjunction with an education use. If located in Precinct 4, must be part of a development with frontage to a Transport Zone 2 or a Transport Zone 3
Any other use not in Section 1 or 3	

Section 3 – Prohibited

Use
Animal Husbandry (other than Apiculture)
Camping and caravan park

Use

Cemetery
Corrective institution
Crematorium
Drive-in theatre
Extractive industry
Fuel depot
Motor racing track
Primary produce sales
Refuse disposal
Road freight terminal
Saleyard

4.0

27/05/2019
C160mari

4.1

19/03/2015
C125

Centre-wide provisions**Use of land**

A permit is not required to use land for the purposes and services of Local Government providing the use is carried out by, or on behalf of, the public land manager.

4.2

19/03/2015
C125

Subdivision

Applications for subdivision of sites that are associated with a development proposal that does not support the objectives of this Schedule are discouraged.

Consolidation of land to facilitate the creation of viable development sites is encouraged.

4.3

27/05/2019
C160mari

Buildings and works**Permit Exemptions**

No permit is required to construct a building or construct or carry out works for the following: :

- Construct or carry out buildings and works in Precinct 1 (other than Sub-Precinct 1A) for the following:
 - The installation of an automatic teller machine.
 - An alteration to an existing building façade provided:
 - The alteration does not include the installation of an external roller shutter.
 - At least 80 per cent of the building façade at ground level is maintained as an entry or window with clear glazing.
 - The construction or modification of a waste pipe, flue, vent, duct, exhaust fan, air conditioning plant or similar.
 - Shade sails to an existing roof deck.
 - An awning that projects over a road if it is authorised by the relevant public land manager.
- Buildings and works for the purpose of Local Government, Education or Transport providing the use is carried out by, or on behalf of, the public land manager.
- Construct or extend the following within Precinct 7 or Sub-Precinct 1A:
 - A single dwelling on a site greater than 300 square metres.
 - Works normal to a dwelling.
 - An open-sided pergola or verandah with a finished floor level not more than 800mm above natural ground level and a maximum height not more than 3 metres above natural ground level.
 - An outbuilding with a gross floor area not more than 10 metres and a maximum building height not more than 3 metres above natural ground level, but not including the construction or extension of a garage or carport.

- A deck with a finished floor level not more than 800 mm above natural ground level.
- A domestic swimming pool or spa and associated mechanical equipment and safety fencing
- A front fence that does not exceed the maximum height specified in Clause 54.06-2.

4.4
19/03/2015
C125

Design and development

Dwellings

On a lot of less than 300 square metres, a development must meet the objectives and should meet the standards of Clause 54 if it proposes to:

- Construct or extend one dwelling; or
- Construct or extend a front fence within 3 metres of a street if the fence is associated with one dwelling.

A development must meet the objectives and should meet the standards of Clause 55 if it proposes to:

- Construct a dwelling if there is at least one dwelling existing on the lot.
- Construct two or more dwellings on a lot.
- Extend a dwelling if there are two or more dwellings on a lot.
- Construct or extend a dwelling if it is on common property.
- Construct a residential building.
- Construct or extend a fence within 3 metres of a street if:
 - The fence is associated with 2 or more dwellings on a lot or a residential building, and
 - The fence exceeds the maximum height specified in Clause 55.06-2.

This does not apply to a development of four or more storeys, excluding a basement.

General built form guidelines

- Ensure safety is a key priority in the design and development of urban spaces and buildings in Footscray.
- Ensure development demonstrates effective, considered materials selection and configurations, for aesthetic quality, durability and contextual response.
- The bulk and scale of new development should consider the potential future built form and land use on adjacent sites.
- New lower level built form façade treatments should provide a pedestrian environment that has visual interest and activates the street.
- Building frontages should seek to enhance existing adjoining streets and be designed to be visually interactive, with passive surveillance opportunities, and be visually interesting and engaging through use of contemporary, durable materials.
- New built form in transition areas should provide a transition in scale from larger buildings to adjacent areas with smaller scale built form.
- Ensure heights of buildings located within transition areas are at the lower end of the preferred height ranges.
- Activation of upper levels should be maximised, including residential or commercial spaces which have visible windows and balconies to facilitate visual interaction, as well as appropriate privacy.
- New built form frontages should seek to provide articulation and detail in frontage facades, especially in 'long' or significant new development.
- Ensure development adjacent to or nearby existing or future public spaces and places addresses and activates the public area.
- Ensure new development does not overshadow existing or proposed open space between the hours of 10am and 3pm at the equinox.

MARIBYRNONG PLANNING SCHEME

- Tower forms above podiums, or upper level built form, should generally be setback by 5 metres from the street to reduce visual bulk, achieve generous spacing between buildings, views to the sky and daylight access to public realm.
- New development should reinforce existing fine grain built form.
- Ensure new development that adjoins heritage buildings:
 - Has regard to the height, scale, rhythm and proportions of the heritage buildings including characteristic, fine-grain frontage widths.
 - Locates the greatest massing away from heritage buildings and responds to the lower scale of adjoining heritage buildings.
 - Has a complementary scale and façade sensitive to the adjoining heritage building
- Encourage the overall improvement in appearance of shop-fronts, especially within the centre's core.
- Built form frontages should seek to reinforce the existing strongly defined pattern of streets and lanes by building up to street frontages, except where this would be inconsistent with the established rhythm of street setbacks.

Car parking location and design

- Ensure new development provides sufficient car parking to meet its own demands, having regard to its location and proximity to public transport and the need to reduce non-essential use of private vehicles.
- Consolidate car parking within the centre, and encourage the provision of multi-purpose parking areas at strategic locations
- Car parking access to built form should be consolidated at one entry point, and carefully located away from areas with a pedestrian focus.
- Ensure that multi-level car parking is appropriately designed and articulated such that it does not detrimentally impact upon the public realm.
- Encourage the integration of car parking into buildings, including providing under-croft and basement parking as opposed to open-lot at-grade car parks.
- New development should seek to provide active frontages which 'wrap' or conceal any proposed car parking, especially at the ground level.

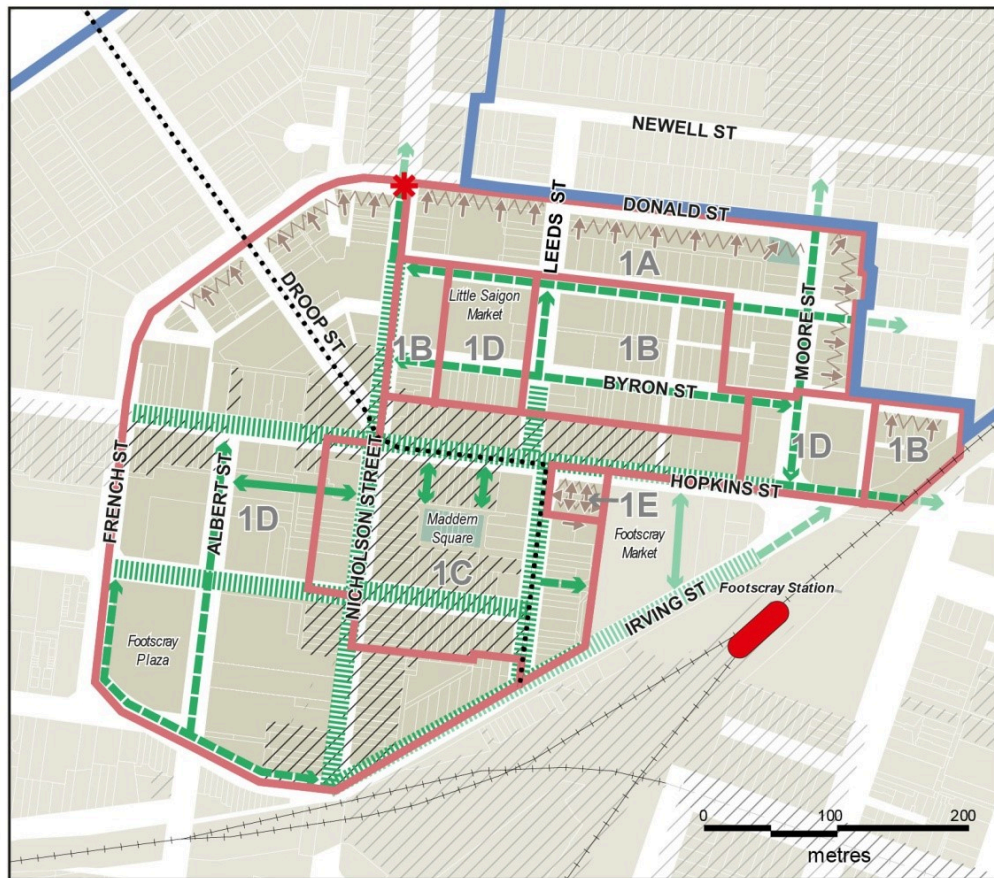
Environmentally sustainable design

- Ensure development demonstrates best practice, and identifies the level of sustainability performance standards to be adopted and demonstrates the means by which the agreed level of sustainable performance standards will be achieved.
- The building design and layout of new development should provide good solar access and daylight opportunities.
- Encourage new development to explore options to reduce the amount of waste generated and encourage increased reuse and recycling of waste materials.
- Encourage building materials conservation, including consideration of their environmental impact.
- Indoor environmental quality and healthy internal environments should be considered from the outset through the layout and form of buildings.
- Encourage on-going monitoring and post occupancy assessment of ESD measures.

Precinct provisions

Precinct 1: Central

5.1-1 Precinct map



LEGEND

	Rail Station & Line		Existing Tram Route
	Activity Centre Boundary		Main Walking Route
	Precinct Boundary		Potential Pedestrian Link
	Sites Subject to Heritage Overlay		Pedestrian Priority Route
	Open Space		Transition Area To Lower Built Form
			Planned Pedestrian Signal



5.1-2 Precinct objectives

- To promote a high quality public realm, good quality urban design, protection of heritage places, and public safety throughout the precinct.
- To ensure the offer of shops, entertainment and dining meet the needs of the future resident and worker population.
- To encourage the provision of further supermarket and department store retail uses.
- To encourage the development of an evening economy, including restaurants, cafes, arts and entertainment uses.
- To ensure that retail is concentrated in this precinct and avoids further dispersal of key shopping facilities.
- To support the establishment of medical facilities along Paisley Street.
- To encourage the provision of student services and facilities.
- To support the establishment of an Arts facility.

- To create dynamic streets and a ‘market atmosphere’ in the precinct including outdoor eating opportunities and active frontages.
- To revitalise Maddern Square as an urban plaza with active edges comprising restaurants, speciality stores and services.
- To promote mixed-use buildings, including higher density housing, affordable housing and office uses at upper floor levels.
- To encourage a transition to neighbouring residential areas.
- To emphasise Nicholson Street and Leeds Street as key north/south corridors through the Footscray MAC.
- To enhance the connectivity of pedestrians within the precinct and to other parts of the Footscray MAC, particularly universities and transport facilities.
- To maximise opportunities to improve public transport connections.
- To upgrade the pedestrian experience along key pedestrian routes.
- To enhance the image of Footscray’s retail areas through protection of heritage places, improvements to the appearance of the built form and renewal of the public realm.

5.1-3 Precinct requirements

Sub-precinct	Preferred maximum building height	Preferred setback
1A	6 storeys (19.2m) 2-4 storeys (6.4-12.8m) at street frontage	
1B	6 storeys (19.2m) 2-4 storeys (6.4-12.8m) at street frontage	
1C	3 storeys (9.6m) 2-4 storeys (6.4-12.8m) at street frontage	
1D	10 storeys (31m)	Levels above 5 storeys setback minimum of 5m from street frontage
1E	25 storeys (76m)	Levels above 5 storeys setback minimum of 5m from street frontage

5.1-4 Precinct guidelines

- Maintain the fine grain and heritage streetscapes within identified heritage areas through low rise development outcomes and well articulated facades.
- Maintain the fine grain urban form by:
 - reinforcing the historic character of the 5-6 metre wide retail premises;
 - inclusion of heritage buildings into redevelopment; and
 - providing streets and lanes which create a highly permeable pedestrian environment.
- Key public realm spaces such as the Nicholson Street Mall and Maddern Square, should have good solar access and outlook (between 10am and 3pm at the equinox) to maintain and enhance activity.
- New built form on the north side of main walking routes should ensure that reasonable sunlight access is maintained on the south side of the street, especially along key streets in the MAC, such as Barkly / Hopkins Street and Paisley Street (between 9am and 3pm at the equinox, September 22).

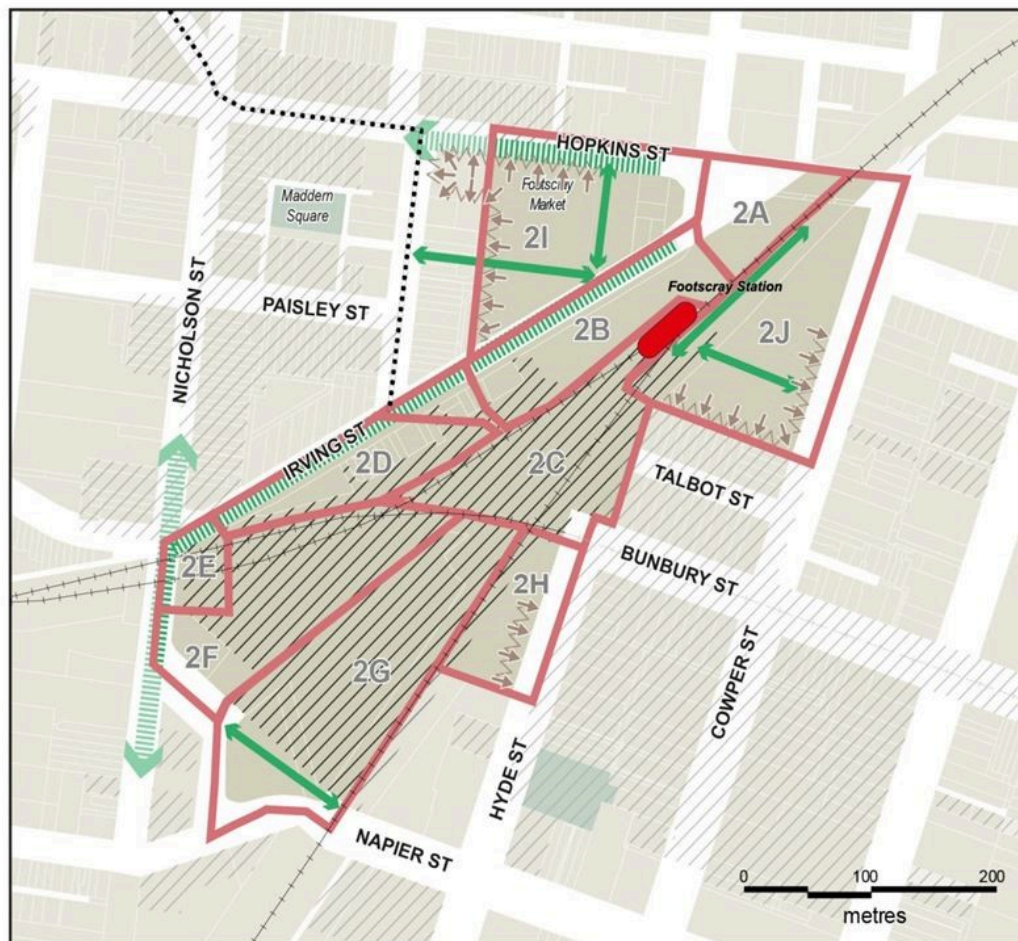
MARIBYRNONG PLANNING SCHEME

- Emphasise the Barkly and Hopkins Street east-west corridor through built form by building to boundaries, providing for passive surveillance, and providing pedestrian protection.
- Buildings in areas identified as Transition Areas should be designed to make an appropriate transition in height, scale and built form between the higher scale built form and the sensitive interface with lower scale residential buildings, this also applies to buildings not in a transition area but which abut a heritage overlay
- Provide a high quality pedestrian environment through prioritisation of pedestrians, minimising parking access ways, activation of street frontages, and provision of pedestrian protection including awnings, planting and lighting, and including continuous weather protection and activation along frontages to designated pedestrian priority routes.
- Require noise attenuation measures to be incorporated within new dwellings along the Barkly / Hopkins Street corridor.
- Prohibit the use of solid roller doors on shop fronts.

5.2
19/03/2015
C125

Precinct 2: Station

5.2-1 Precinct map



LEGEND

- | | |
|-----------------------------------|-------------------------------------|
| Rail station & Line | Existing Tram Line |
| Activity Centre Boundary | Proposed Tram Line |
| Precinct Boundary | Transition Area To Lower Built Form |
| Sites Subject to Heritage Overlay | Pedestrian Priority Route |
| Open Space | Potential Pedestrian Link |



5.2-2 Precinct objectives

- To facilitate the redevelopment of the station precinct in accordance with the Footscray Station Urban Framework Plan (2009).
- To create a high quality public transport interchange that integrates with the centre and reinforces Footscray Station as a major regional intermodal transport node.
- To encourage high quality architecture and urban design that emphasises Footscray Station as a local focus and ‘gateway’ to the Western region of metropolitan Melbourne.
- To revitalise and stimulate private sector investment and urban renewal in the area.
- To enhance amenity and safety of the public realm, and to provide active ground level frontages and opportunities for passive surveillance.
- To create a socially and economically sustainable mixed use precinct that provides a diverse range of housing, commercial, retail and public recreation opportunities.
- To ensure that new development is environmentally sustainable, incorporating energy efficiency measures and encouraging sustainable travel patterns.
- To ensure that development responds to the heritage values of the Footscray Station and precinct.
- To ensure that environmental conditions of the site, including the effects on a proposed use or development of contamination, noise or vibration, are appropriately considered.

5.2-3 Precinct requirements

Sub-precinct	Preferred maximum building height	Preferred setback
2A	15 storeys (48 metres)	
2B	12 storeys (38.4 metres)	
2C	No built form in public plaza space	
2D	8 storeys (25.6 metres)	
2E	5 storeys (16 metres)	
2F	3 storeys (9.6 metres)	
2G	12 storeys (38.4 metres) on McNab Ave 14 storeys (44.8 metres) at Teardrop Site	
2H	6 storeys (19.2 metres)	
2I	25 storeys (80 metres) at Footscray Market site 20 storeys (64 metres) at corner site	
2J	3 storeys (9.6 metres) on Talbot St interface 6 storeys (19.2 metres) along Cowper Street interface 10 storeys (32 metres) along railway interface	

5.2-4 Precinct guidelines

- Development proposals should contribute to the creation of a social, cultural and environmentally sustainable community, including through the provision of affordable housing.
- Development should complement the retail function of the core precinct and not compete or detract from it.

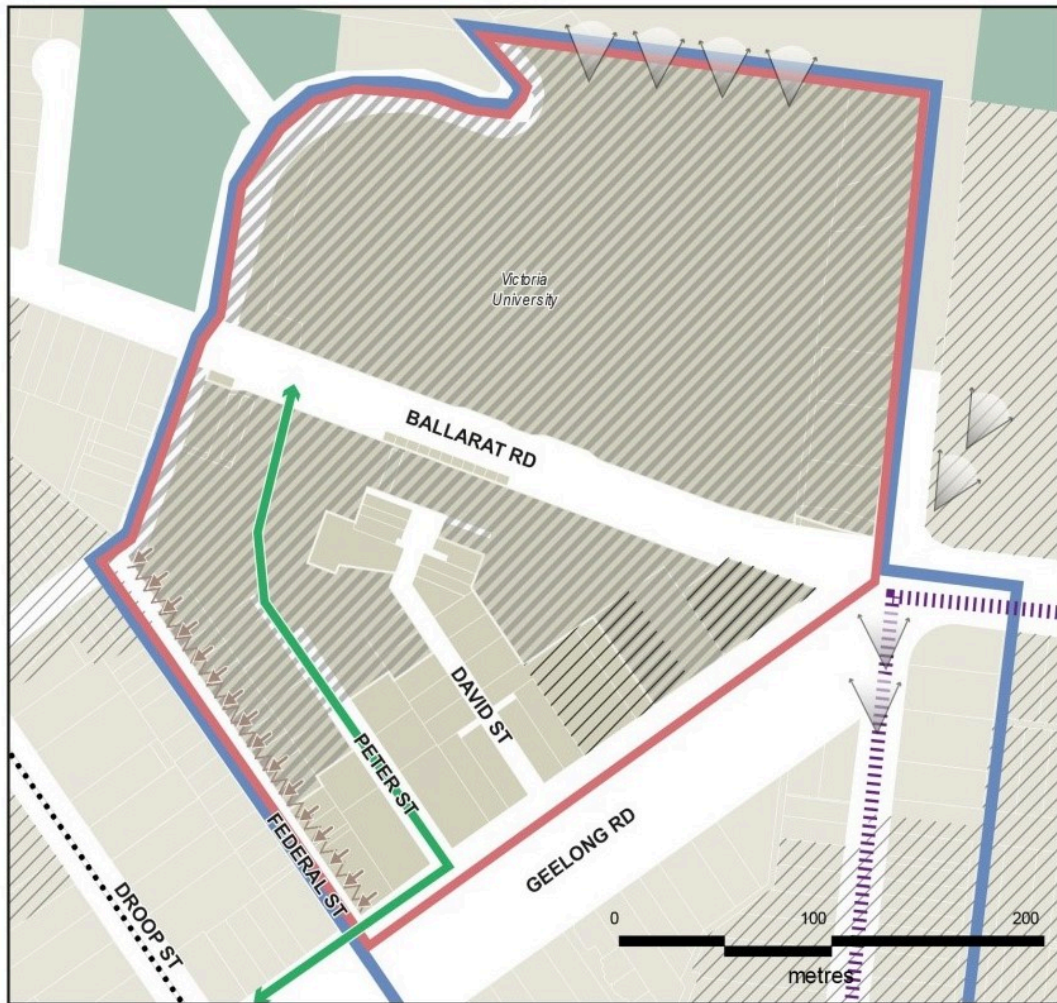
MARIBYRNONG PLANNING SCHEME

- Development should accommodate a broad mix of land uses which support daytime and evening activity and be accessible to the whole community.
- Development should retain the pedestrian focus and space around the Station, and strengthen its identity as an oasis within an area of change.
- New built form should respond to its central and strategic location within the 'transport hub', with iconic or landmark buildings.
- New built form should minimise impacts of traffic and of the railway corridor interface, such as noise, vibrations and outlook, on amenity within buildings.
- Development should emphasise station entry points and enable safe and direct access to the station for pedestrians, cyclists and public transport users.
- New development should enhance the sense of arrival into the MAC and reinforce the pedestrian experience, through new built form frontages, land uses and pedestrian space.
- Buildings located within the Transition Area should provide appropriate reductions in building height and mass toward existing lower scale development at the interface and not exceed 3 storeys.
- Reduced off street car parking may be considered having regard to the proximity and availability of public transport, and any agreements to implement car parking demand reduction measures.
- Built form should respect the heritage context allowing for heritage prominence to be maintained and sensitively mitigated
- Development should embrace the historical and present day significance of the Footscray Railway Station and adjoining landscaping including the unique 1899 V-junction station that has since served as a major civic building and focal point for Footscray.

Precinct 3: University

5.3-1 Precinct maps

North



LEGEND

- Activity Centre Boundary
- Precinct Boundary
- /// Sites Subject to Heritage Overlay
- XXXX Areas Excluded From ACZ

- ↔ Potential Pedestrian Link
- On-road Bike Lane
- ↑↑↑ Transition Area To Lower Built Form
- △ Striking Long Views



South



LEGEND

- Activity Centre Boundary
- Precinct Boundary
- //// Sites Subject to Heritage Overlay
- // Areas Excluded from ACZ
- ↔ Potential Pedestrian Link
- ||||| Pedestrian Priority Route
- ||||| On-Road Bike Lane
- ↑↑↑ Transition Area To Lower Built Form



5.3-2 Precinct objectives

- To support the University's ongoing role in providing regionally significant tertiary education facilities.
- To provide for uses and developments which support the University needs within the precinct, whilst facilitating university services to locate within the broader FMAC, drawing students and staff into the centre of the MAC.
- To ensure the University campuses and their students are integrated in the broader Footscray MAC.
- To discourage commercial and retail uses unless they are associated with the operations of the University or are part of the development of an integrated mixed use education area.
- To improve pedestrian access and links to the University campuses in particular the key pedestrian link along Nicholson St to the VU South campus.
- To ensure optimal utilisation of land within the precinct and minimise large expanses of at grade car parking.

5.3-3 Precinct requirements

Preferred maximum building height	Preferred setback
6 storeys (19.2 metres)	
2 to 4 storeys (6.4-12.8 metres) at street frontage	

5.3-4 Precinct guidelines

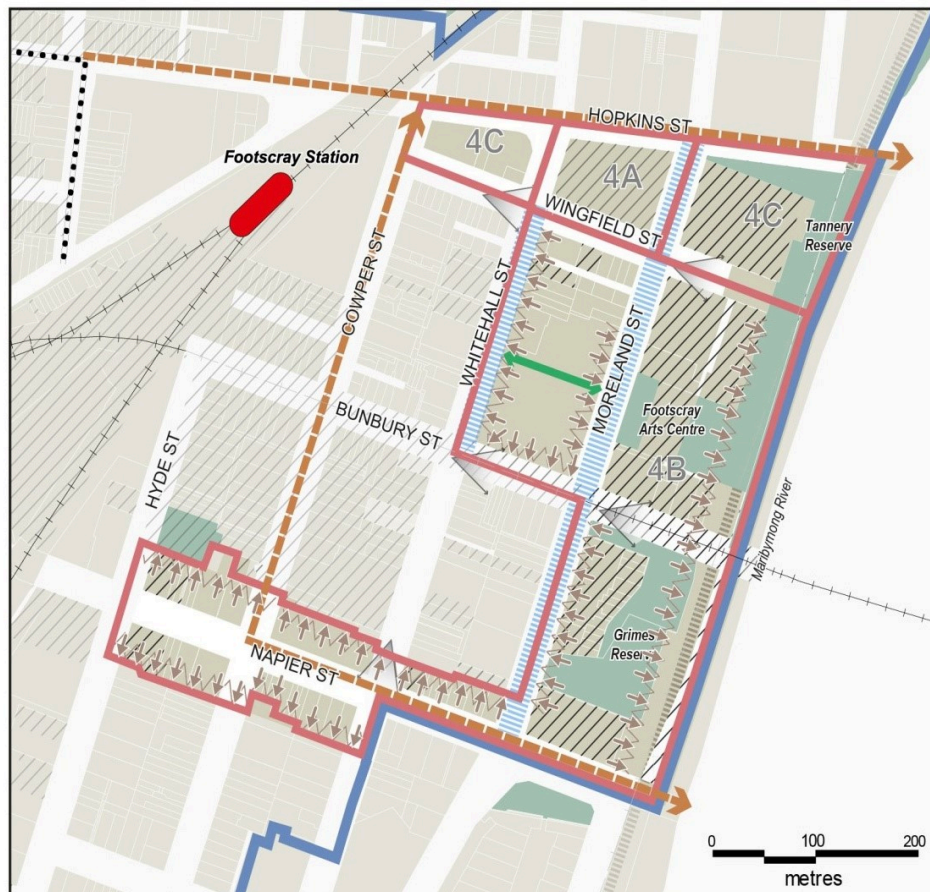
- Consideration should be given to locating university uses that would benefit from a wider audience (eg: performing spaces) within the central FMAC precincts.
- Future redevelopment of the precinct's existing car park sites should create a mixed-use area focussed on education and incorporating student and staff accommodation, teaching, research and conference facilities, and student services and facilities.
- Street wall heights should generally range between 2 and 4 storeys, other than on major roads such as Ballarat and Geelong Roads, where the street wall height may be up to 6 storeys to assist in providing a traffic noise buffer to development behind.
- Where streetscape context reflects zero front and side setbacks, new built form should maintain this condition, forming a continuous 'street wall'.
- Buildings located within the Transition Area should provide appropriate reductions in building height and mass toward existing lower scale development at the interface and not exceed 3 storeys.
- When new development adjoins heritage buildings, the design should have regard to the height, scale, rhythm and proportions of the heritage buildings including characteristic, fine-grain frontage widths.
- The arrangement of buildings should facilitate pedestrian and cycle access routes into and through the precinct which contribute to the permeability of the wider pedestrian and cycle network.

Note: While Victoria University is excluded from the Activity Centre Zone schedule the objectives and guidelines have been included in the schedule to provide guidance in relation to development within and surrounding the Victoria University sites.

5.4
19/03/2015
C125

Precinct 4: Riverside

5.4-1 Precinct map



LEGEND

- | | |
|-----------------------------------|-------------------------------------|
| Rail Station & Line | Existing tram route |
| Activity Centre Boundary | Potential Pedestrian Link |
| Precinct Boundary | Potential Tram Line |
| Sites subject to Heritage Overlay | Potential Traffic Calming |
| Open Space | Shared Pedestrian/Cycle Path |
| Striking Long Views | Transition Area To Lower Built Form |



5.4-2 Precinct objectives

- To maintain and respect the precinct's diversity and historic value.
- To create a distinct precinct that capitalises on its River frontage and incorporates arts, historical and maritime themes.
- To encourage a Mixed Use precinct that provides for local employment and services local needs without compromising the amenity of residential areas.
- To create multiple walking and cycling linkages to the River, nearby uses and development, and the central and station precincts of the MAC.
- To ensure development respects the historic nature of buildings and streetscapes within the precinct.
- To ensure new residential development is well protected from traffic noise and port related activities.
- To develop the precinct as a focus for the arts and creative industries.
- To encourage use and activation of the river and riverfront through creation of a distinct, vibrant and active urban edge along the waterfront.
- To maintain public access to the River and its activities and prevent privatisation of space along the River.
- To ensure that built form transitions to lower heights near the River frontage.

5.4-3 Precinct requirements

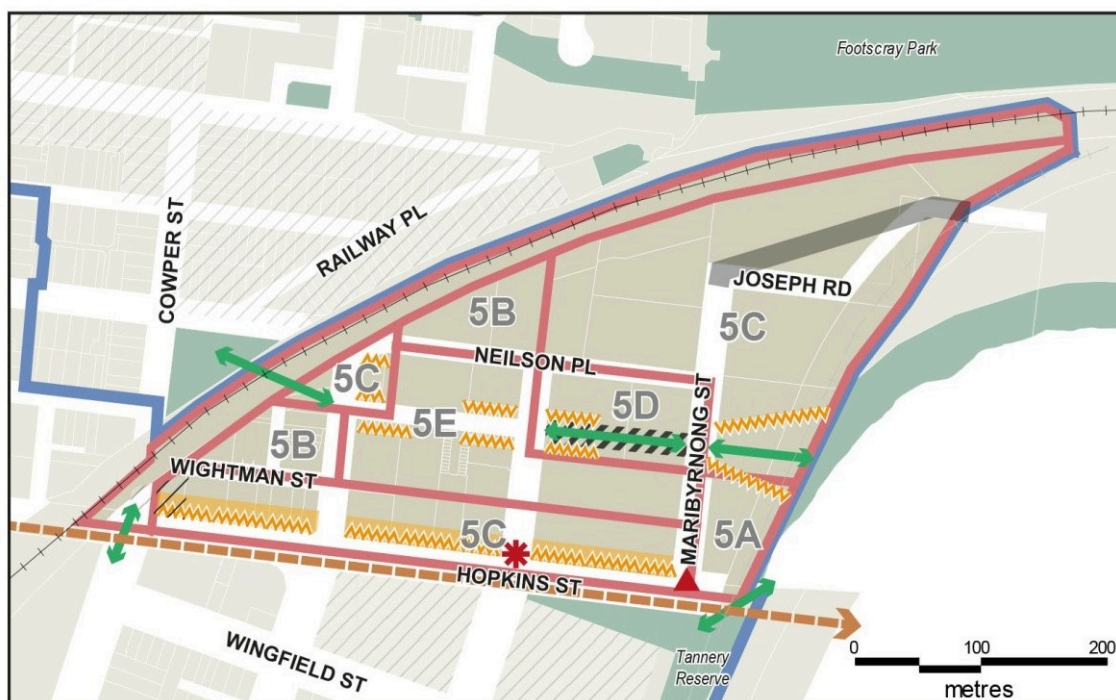
Sub-precinct	Preferred maximum building height	Preferred setback
4A	3 storeys (9.6 metres)	
4B	6 storeys (19.2 metres) 2 to 3 storeys (6.4-9.6 metres) at the street frontage / podium level	
4C	10 storeys (32 metres) 2 to 3 storeys(6.4-9.6 metres) at the street frontage / podium level	Levels above 5 storeys setback a minimum of 5 metres from street frontage

5.4-4 Precinct guidelines

- In public realm areas structures and landscape treatments should enhance access to the riverfront.
- Where development fronts the river it should actively engage with the river frontage.
- Development should create a lower, human scale form along the riverfront.
- Opportunities should be maximised for generous planting including canopy trees and other plants of a resilient nature.
- Encourage taller building forms to front Hopkins Street and transition down to River frontage areas and established residential areas.
- On larger sites encourage internal access ways which reflect the grid character of surrounding streets. Built form should respond to the internalised street environment.
- Ensure buildings include appropriate building design to mitigate against traffic noise in particular along Hopkins, Whitehall and Napier Streets and port related activities.
- Encourage development to capitalise on the precinct being the arts and creative industries focus of the MAC through provision of public art and adaptability of building forms.
- Buildings within the Transition Area, in particular along Moreland and Bunbury Streets and along the riverfront, should provide appropriate reductions in building height and mass toward the existing lower scale buildings at the interface and not exceed 3 storeys.
- Built form should respect the heritage context allowing for heritage prominence to be maintained and sensitively mitigated. Development that adjoins heritage buildings should have regard to height, scale, rhythm and proportions of the heritage buildings.
- The Maribyrnong River Valley Design guidelines should be consulted in regard to building siting, scale and materials for development east of Moreland Street.
- To support removal of the railway line along the River in the event that it is deemed redundant to Port operations.

Precinct 5: Joseph Road

5.5-1 Precinct map



LEGEND

	Activity Centre Boundary		Potential Tram Line
	Precinct Boundary		Active Frontage
	Sites Subject to Heritage Overlay		Active Frontage With 3m Setback
	Open Space		Proposed New Street
	Potential Pedestrian Link		Potential Street Realignment
	Left In/Left Out Access Only		Potential Signalled Access to Precinct



5.5-2 Precinct objectives

- To create a vibrant, mixed use precinct that complements the role and function of the Footscray Central Activities Area through:
 - a diverse range of higher-density housing development accommodating approximately 4,000 dwellings
 - a viable mix of commercial, retail, community, entertainment, and recreation land uses
 - a wide range of employment opportunities to complement the role of central Footscray.
- To encourage retail, entertainment and recreational uses along the existing and extended Warde Street, and along the riverfront.
- To encourage the provision of showroom, restricted retail and office along the Hopkins Street frontage.
- To establish a robust urban character with:
 - high quality architecture and urban design
 - an active, attractive and accessible riverfront with improved public recreation opportunities and high amenity public spaces and places
 - an active and improved frontage to Hopkins Street that marks the precinct as a ‘gateway’ to Footscray.
- To provide a high amenity, upgraded street and pathway network with improved pedestrian and cyclist connections to areas beyond the precinct.

- To support the transport function of adjoining rail corridors and the widening of the passenger rail line, by ensuring interface amenity and safety issues are considered.
- To encourage sustainable development that:
 - incorporates best practice energy efficiency and water management measures
 - promotes sustainable travel patterns through an integrated approach to transport planning
 - supports the inclusion of community facilities and housing affordability.
- To ensure that development responds to the site features and constraints including heritage values of the heritage listed features, potential contamination, flooding, and service infrastructure requirements.
- To provide built form that does not result in significant overshadowing of the St Monica's Primary School.

5.5-3 Precinct requirements

Sub-Precinct	Preferred maximum building height	Preferred setback
5A	4 storeys (12.8 metres)	
5B	6 storeys (19.2 metres)	
5C	West of Whitehall Street: 12 storeys (36.8 metres); and 3-4 storeys (9.6-12.8 metres) at street frontage / podium level Between Whitehall and Moreland Streets: 12 storeys (37 metres); and 4-5 storeys (12.8-16 metres) at street frontage / podium level Between Moreland and Maribyrnong Streets: 12 storeys (37.2 metres); and 5-6 storeys (16-19.2 metres) at street frontage / podium level Other areas: 12 Storeys (37 metres)	3 metre front setback for buildings along Hopkins Street
5D	15 storeys (46 metres) 4-5 storeys (12.8-16 metres) at street frontage / podium level	
5E	25 storeys (76 metres) 4-5 storeys (12.8-16 metres) at street frontage / podium level	

5.5-4 Precinct guidelines

- Development should respond to interfaces with transport corridors. The design and construction of buildings for sensitive uses with interfaces to Hopkins Street or rail infrastructure should ensure that potential noise and vibration impacts generated by heavy vehicles or train movements are addressed.
- A network of high amenity public places and pedestrian spaces should be provided as shown in the Precinct Plan.
- Visual and physical connections between the river and the precinct should be provided.
- Active frontages created by retail, entertainment, and recreation uses at ground level are encouraged along the main connections to the river along Warde Street and along Hopkins Street.
- Development proposals should respect planned pedestrian and cycling network.
- Pedestrian/cycle bridges provided across the passenger rail line and crossing points of the freight rail line should be defined by robust landscaping and clear sight lines, and designed to the satisfaction of VicTrack, the Department of Economic Development, Jobs, Transport and Resources and Public Transport Victoria.
- Development proposals with river frontage should include opportunities for activation along the riverside.

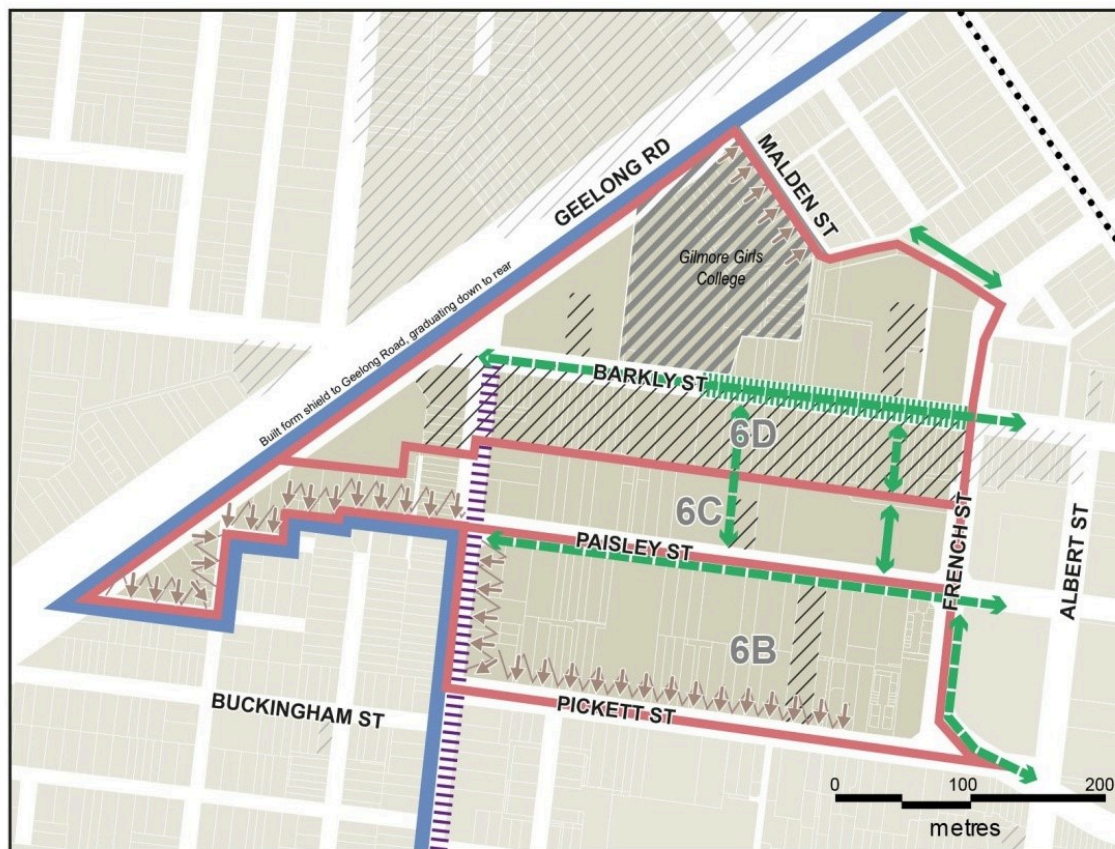
MARIBYRNONG PLANNING SCHEME

- Development should provide a high quality street environment which incorporates, footpaths, cycle paths, and on-street car parking, and maximises opportunities for street planting where appropriate.
- Opportunities should be provided to green the urban environment both in the public realm and as a part of new developments.
- Taller forms should be generally located towards the centre of the precinct, with a transition to lower forms adjacent to the riverfront and the residential area to the west.
- Built form should create a robust urban character with minimal boundary setbacks that reinforce the geometry and pattern of the existing road network, except where development should respond to the proposed changes to the existing road network through the construction of proposed new pedestrian/cycle links as shown in the Precinct Plan.
- The primary vehicle access point to and from the precinct should be via a signalised intersection at the corner of Hopkins Street and Moreland Street, with associated intersection treatments. Secondary vehicle access points should be provided at the intersection of Whitehall Street and Maribyrnong Street, with Hopkins Street.
- Direct vehicle access from Hopkins Street to development should be avoided. Car parking and service vehicle access for development along Hopkins Street will be provided from the precinct's internal street network.
- On-street car parking should be provided in streets whilst ensuring sufficient width to accommodate parallel car parking spaces as well as bicycle lanes, pedestrian footpaths, and landscaping treatments.
- Building forms should avoid substantial overshadowing of St Monica's Primary School between 9am and 3pm on 22 September.

Precinct 6: Peripheral Activity

5.6-1 Precinct maps

North



LEGEND

- | | |
|---|---|
|  Activity Centre Boundary |  On-Road Bike Lane |
|  Precinct Boundary |  Potential Pedestrian Link |
|  Sites Subject to Heritage Overlay |  Main Walking Route |
|  Areas Excluded From ACZ |  Pedestrian Priority Route |
|  Existing Tram Route |  Transition Area To Lower Built Form |



South



LEGEND

- | | |
|--|---|
| +++++ Railway line | ↔ Main Walking Route |
| — Activity Centre Boundary | Pedestrian Priority Route |
| — Precinct Boundary | --- On-Road Bike Lane |
| //// Sites Subject to Heritage Overlay | ↑↑↑ Transition Area To Lower Built Form |



5.6-2 Precinct objectives

- To support the growing mixed-use character of the precinct with an emphasis on employment uses, commercial services and small businesses which support the regional role of the MAC.
- To support development along main street frontages that provides for a variety of activity on ground floor that can accommodate a range of uses that will activate the street.
- To encourage shops along Barkly Street that complement the retail core of the MAC.
- To encourage medical, community and health services in Paisley Street.
- To encourage employment related uses including offices and small businesses.
- To encourage residential development which appropriately responds to surrounding land uses and provides good amenity for future residents.
- To preserve identified heritage buildings and incorporate into new developments.
- To ensure that new business activity is compatible with nearby dwellings.
- To provide additional open space to serve the southern part of the activity centre as part of any redevelopment of the bus depot.
- To ensure development in areas identified as Transition Areas is designed to make an appropriate transition in height, scale and built form to adjoining residential areas.
- To increase pedestrian permeability between Barkly and Paisley Street and investigate related crossings over Paisley Street.

- To facilitate provision of car parking thus minimising the need within the central precinct whilst ensuring parking provision minimises the impact on pedestrians caused by blank walls and accessways.

5.6-3 Precinct requirements

Sub-precinct	Preferred maximum building height	Preferred setback
6A	3 storeys (9.6 metres) 2 to 3 storeys (6.4-9.6 metres) at street frontage	
6B	6 storeys (19.2 metres) 2 to 3 storeys (6.4-9.6 metres) at street frontage / podium level	
6C	10 storeys (32 metres) 2 to 3 storeys (6.4-9.6 metres) at street frontage / podium level	5 metre upper level setback from street frontage
6D	14 storeys (44.8 metres) 2 to 3 storey (6.4-9.6 metres) at street frontage / podium	5 metre upper level setback from street frontage

5.6-4 Precinct guidelines

- Require noise attenuation measures for dwellings along Barkly and Buckley Streets and Geelong Road, or where there is adjacent commercial activity that operates late at night.
- Buildings within the Transition Area should provide appropriate reductions in building height and mass toward the existing lower scale buildings at the interface and should not exceed 3 storeys within the transition area.
- Maintain a low-scale residential interface to Walter Street in future development of the Bus Depot site.
- Emphasise the Barkly Street urban corridor through appropriate built form by building to boundaries, providing for passive surveillance, and providing pedestrian protection, including continuous weather protection and activation along frontages to designated Pedestrian Priority Routes.
- Maintain a distinction between lower order streets and the Barkly Street corridor.
- Use solid building massing and height in conjunction with other sound barrier treatments, to help reduce the impact of traffic noise from Geelong Road.
- New built form on the north side of main walking routes should ensure that reasonable sunlight access is maintained on the south side of the street, especially along key streets in the MAC, such as Barkly and Paisley Streets (between 9am and 3pm at the equinox, September 22).
- Prohibit the use of roller shutters for retail premises.
- Maintain the fine grain and heritage streetscape within the Barkly and Hopkins Street corridor.
- Retain prominent landmark buildings such as places of worship and civic buildings.
- Provide improved pedestrian connections between Barkly and Paisley Streets.
- Street wall heights should respect adjoining heritage buildings and streetscapes where applicable, in particular on Barkly Street.
- Side setbacks should reflect the existing context within the MAC and should maintain a continuous street wall frontage, where appropriate along key streets such as Barkly Street and Buckley Street.
- Larger sites should accommodate medium density development to maximise land use, whilst maintaining the existing fine grain, active streetscape presentation.

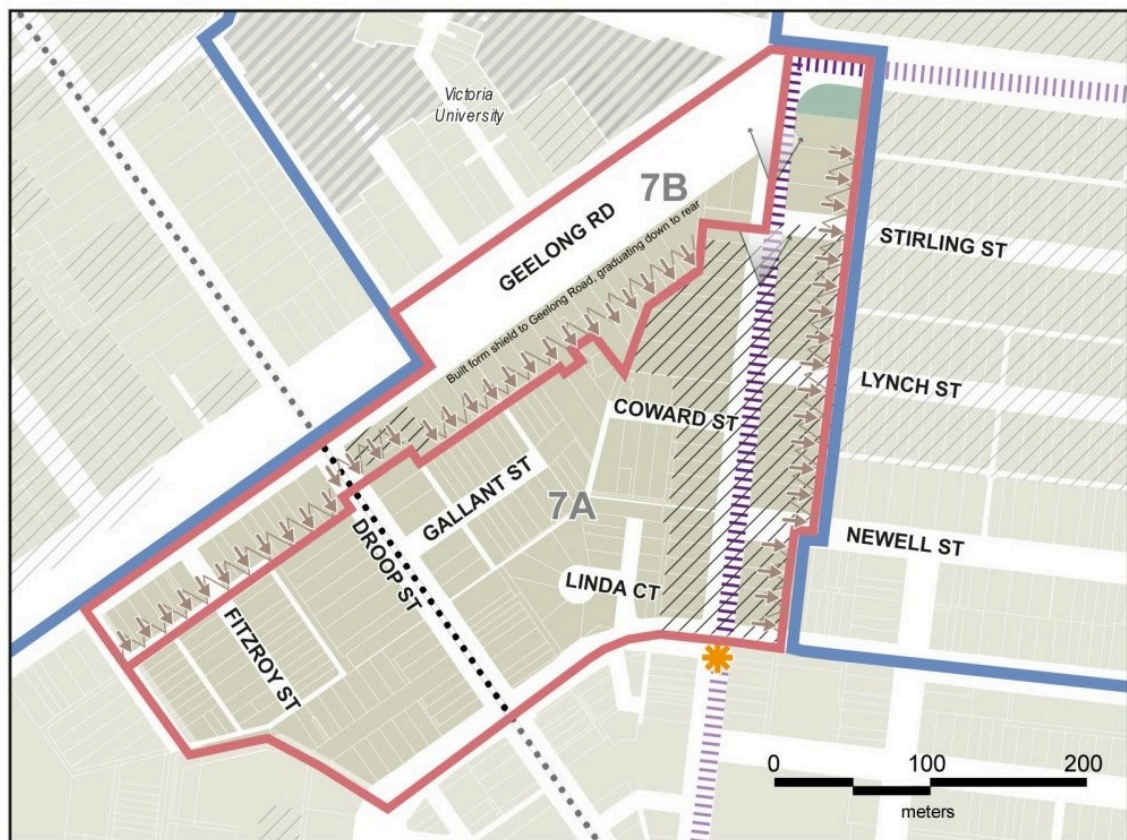
- New built form should respect and respond to the heritage context of the retail core on Barkly Street, allowing for heritage prominence to be maintained and sensitively managed – with the careful consideration of built form massing, articulation, distribution, and architectural style.
- When new development adjoins heritage buildings, the design should take into consideration the height, scale, rhythm and proportions of the heritage buildings including characteristic, fine-grain frontage widths.
- New development should seek to reflect the minor setback condition of residential streetscapes, such as Paisley Street and Buckley Street through landscape treatments or gardens, providing a point of difference between the retail core and peripheral activity precincts.
- Tower forms at upper levels should be set back from the streetscape at least 5 metres, to reduce visual bulk and the effect of wind downdrafts.

5.7
19/03/2015
C125

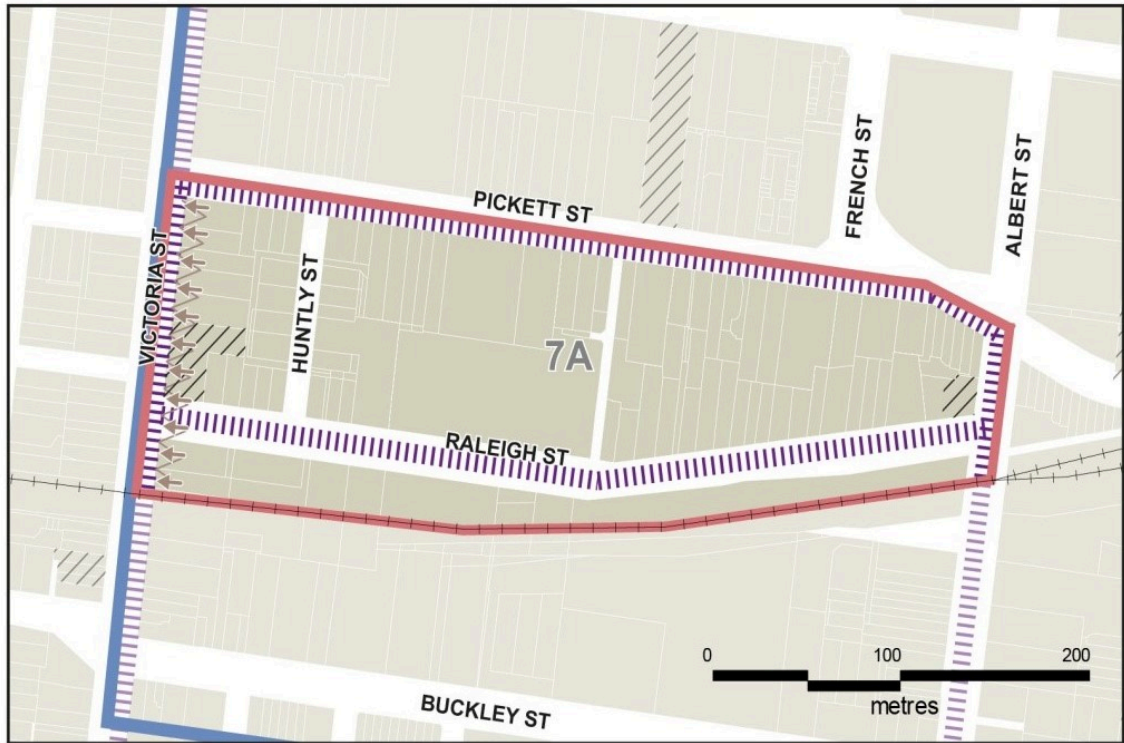
Precinct 7: Neighbourhood

5.7-1 Precinct maps

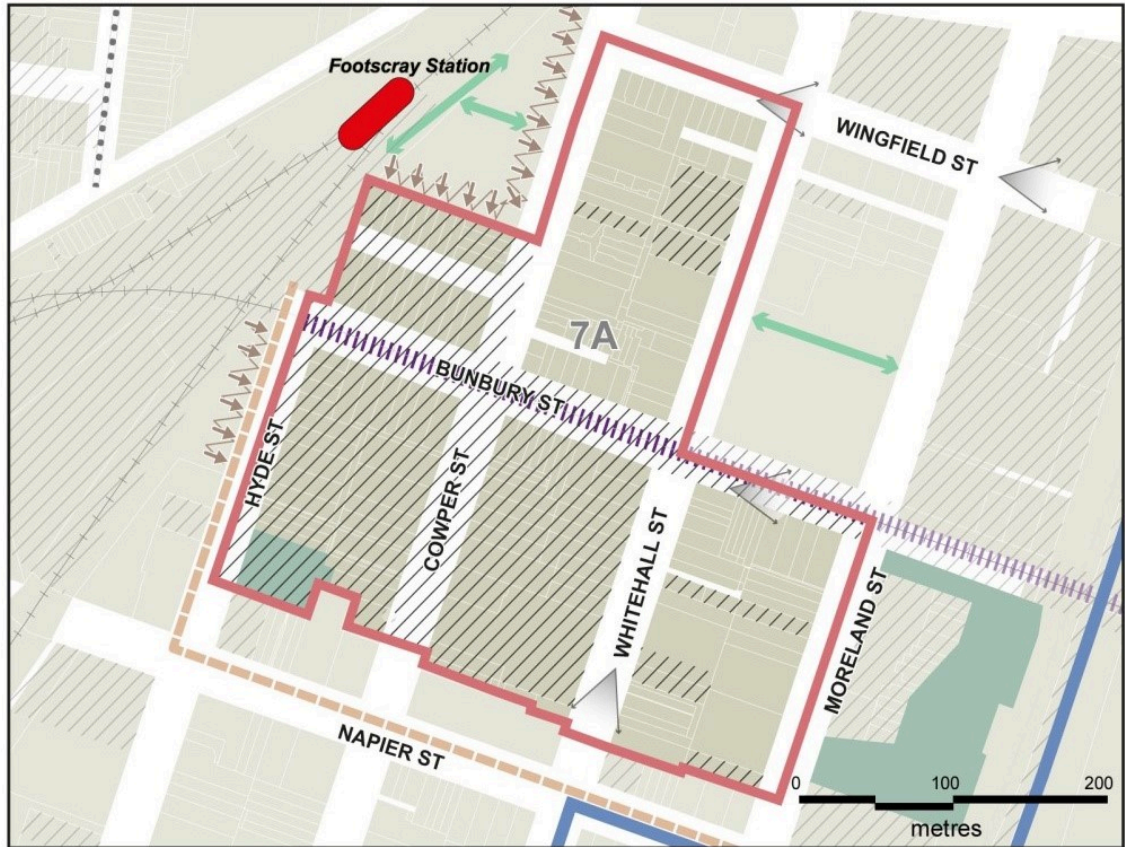
North



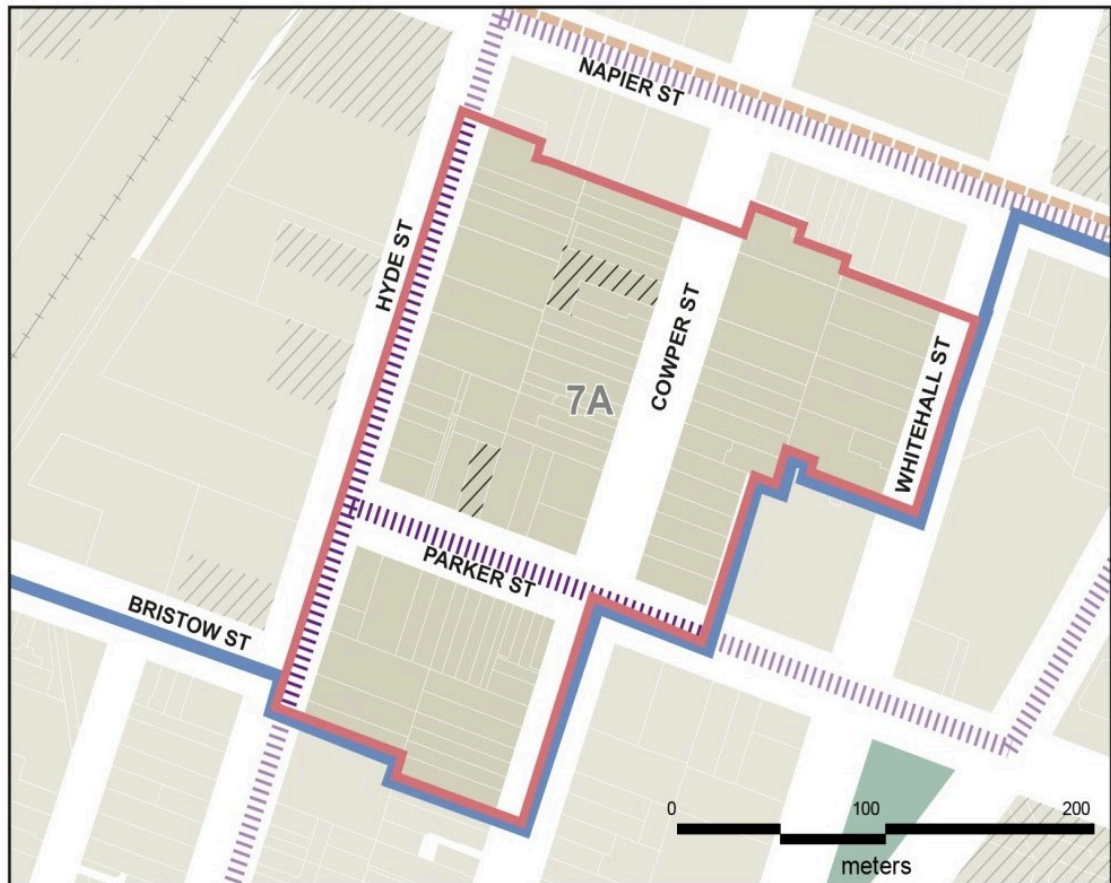
West



East



South



LEGEND

	Rail station & line		On-Road Bike Lane
	Existing Tram Line		Transition Area To Lower Built Form
	Activity Centre Boundary		Potential Pedestrian Link
	Precinct Boundary		Potential Tram Line
	Sites Subject to Heritage Overlay		Planned Pedestrian Signal
	Areas Excluded From ACZ		Striking Long Views
	Open Space		

5.7-2 Precinct objectives

- To protect the amenity of established residential precincts within the FMAC.
- To support limited change and protect high quality streetscapes and identified heritage areas.
- To protect the existing architectural style, neighbourhood character and streetscape qualities of the precincts.
- To ensure non-residential uses or mixed use developments are located on appropriate sites, particularly along main roads, and are compatible with surrounding residential areas.

- To encourage improved pedestrian and cycling links through the precincts, to enhance connectivity across the FMAC, in particular between the central precinct and VU precincts.
- To maintain and respect the precinct's diversity and historic value.
- To ensure development respects the historic nature of buildings and streetscapes within the precinct.
- To ensure development along Bunbury Street reinforces heritage values.
- To maintain and enhance the area's openness, grandeur, street tree planting and garden settings of dwellings.
- To ensure that new residential development offers protection from the potential amenity impacts of road and rail transport along Geelong Road, Whitehall Road and the Railway Line.

5.7-3 Precinct requirements

Sub-precinct	Preferred maximum building height	Preferred setback
7A	3 storeys As per Clause 54 and 55 as appropriate	As per Clauses 54 and 55 as appropriate
7B	6 storeys (18 metres)	

5.7-4 Precinct guidelines

- Ensure existing residential land use focus and built form diversity is maintained as the transitional space within the MAC boundary.
- Major development should be focussed on large existing lots or consolidated sites.
- In Precinct 7 West, a low scale development interface with existing residential areas to the west, outside of the FMAC, should be provided.
- Heritage places should be retained and protected.
- New built form should be respectful and responsive in the heritage context around Bunbury Street, Cowper Street and Nicholson Street, allowing for heritage prominence to be maintained and sensitively managed. Built form massing, articulation and distribution should be carefully considered.
- In areas where the Heritage Overlay applies:
 - New development, including additions to existing buildings, should be distinguishable from the original dwelling stock through the use of innovative and contemporary, yet sympathetic architecture.
 - Articulation and visual interest through colour, building details and architectural reinterpretation is encouraged.
 - When new development adjoins heritage buildings, the design should have regard to the height, scale, rhythm and proportions of the heritage buildings including characteristic, fine-grain frontage widths.
- Front setbacks to built form are encouraged on local streets to reflect the residential garden character of the streetscapes.
- Large, established trees should be retained and provision should be made for the planting of new trees where possible.
- New built form should provide:
 - Side setbacks that accord with the predominant setback patterns in the street.
 - Front fences up to 1 metre in height, or open style front fences up to 1.2 metres in height other than in exceptional circumstances.
 - Upper level(s) setback from the streetscape to maintain the 2 storey street wall frontage.
 - Garages and carports located behind the line of the dwelling.
 - Vehicular access from a rear laneway if available.

Precinct 8: Civic

5.8-1 Precinct map



LEGEND

+++++	Railway Line	↔	Potential Pedestrian Route
—	Activity Centre Boundary	- - -	Potential Tram Route
—	Precinct Boundary	- - -	On-Road Bike Lane
////	Sites Subject to Heritage Overlay	↑↑↑	Transition Area To Lower Built Form
////	Areas Excluded From ACZ		



5.8-2 Precinct objectives

- To support the precinct's position as the civic centre of the FMAC by continued and expanded municipal, community and education uses.
- To allow for sensitive redevelopment which complements the heritage values of the precinct and adjoining residential area.
- To improve pedestrian access, amenity and safety through the precinct, particularly to the station and new community meeting spaces.

5.8-3 Precinct requirements

Preferred maximum building height	Preferred setback
6 storeys (19.2 metres)	

5.8-4 Precinct guidelines

- New built form should be respectful and responsive to the heritage context of the precinct allowing for heritage prominence to be maintained and sensitively approached through careful consideration of built form massing, articulation, distribution and architectural style.
- Support increased usage and accessibility of the Town Hall to the community through adaptation of the former Town Hall to a public meeting space and the Town Hall gardens as a public open space.
- Support development of an Early Years Hub that capitalises on existing community services provision.
- Enhance pedestrian access, amenity, safety and orientation through provision of safe, walkable connections of high amenity through and around the area with active street frontages, clear signage and the minimisation of potential pedestrian / vehicle conflict areas.

6.0

27/05/2019
C160mari

Application requirements

The following application requirements apply to an application for a permit under Clause 37.08, in addition to those specified in Clause 37.08 and elsewhere in the scheme and must accompany an application, as appropriate, to the satisfaction of the responsible authority:

- A description of the proposed use and the types of activities which will be carried out and any proposed staging of use and activities on the land.
- An assessment of how the proposed use supports the land use mix set out in this schedule.
- Plans drawn to scale and dimensioned which show:
 - The siting and use of buildings.
 - Areas not required for immediate use.
 - Adjacent buildings and uses.
 - The likely effects, if any, on adjoining land, including noise levels, traffic, the hours of delivery and despatch of goods and materials, hours of operation and light spill, solar access, glare, air-borne emissions and emissions to land and water.
- An assessment of the likely effects of railway noise and vibration on the proposed use and measures to attenuate any adverse effects for applications within Precincts 2, 4, 5, 6 South 7West and 7East.

If an industry or warehouse:

- The type and quantity of goods to be stored, processed or produced.
- Whether a Works Approval or Waste Discharge Licence is required from the Environment Protection Authority.
- Whether a notification under the Occupational Health and Safety (Major Hazard Facilities) Regulations 2000 is required, a licence under the Dangerous Goods Act 1995 is required, or a fire protection quantity under the Dangerous Goods (Storage and Handling) Regulations 2000 is exceeded.

In addition to the application requirements set out at Clause 37.08-7 an application to construct a building or construct or carry out works must be accompanied by the following information, as appropriate, to the satisfaction of the responsible authority:

- Three dimensional diagrams or visualisation showing the proposed building in the context of the surrounding buildings for applications of development 5 storeys and above in height.
- A design response including how the development responds to the objectives set out in this schedule and the physical surrounds and adjacent land uses.
- How the development responds to any precinct wide plans.
- The location, dimensions (showing relevant levels to AHD and overshadowing impacts), internal layout and use of proposed buildings and works.
- Elevations detailing façade articulation, and indicative concepts for external materials, colours and finishes.

MARIBYRNONG PLANNING SCHEME

- The location and indicative concepts for landscaped areas, street trees, public lighting, signs and public art.
- Pedestrian and vehicle (including bicycle and motorcycle) access points into, around and through the site, including disability access.
- The location of, and access to, public transport and bicycle routes and facilities relative to the proposed buildings and works, access to them and where appropriate, proposed user facilities.
- Details of bicycle and vehicle parking and loading, including location and access for waste recycling, storage and removal.
- How the development will accommodate infrastructure and building servicing requirements.
- How the development addresses any potential adverse wind conditions.
- The location of screening of existing and proposed services including plant equipment, air conditioning, restaurant kitchen exhaust flues, and lighting.
- Staging of development, if appropriate, including the treatment of areas not required for immediate use.
- How the development responds to community needs, including community infrastructure and housing needs, including affordable housing.
- How the layout and design will support best practice environmentally sustainable design principles.
- How the development will respond to the need, if required, for site remediation.
- Works within the adjoining Roads, Streets, Reservations or public areas.
- Potential location of site offices, site parking, storage areas and cranes.
- Details of any demolition and excavation.
- Management of construction waste and potentially contaminated materials.
- Any impacts on public transport operations.
- An Adverse Amenity Impacts Report(s) prepared by a suitably qualified person(s) to the satisfaction of the responsible authority and the Department of Transport, Planning and Local Infrastructure for applications within Precincts 4 and 7East as appropriate that identifies all potential adverse amenity impacts from the use and operation of the Bunbury Street Railway Tunnel and Railway Line. If the report identifies that the proposed use and/or development may be adversely affected, specific recommendations must be provided with the report for appropriate measures to ensure the proposed use and/or development is not adversely affected by the identified impacts.
- A Construction Management Plan (CMP) detailing how the development of the land will be managed to ensure that the amenity and use of the nearby area is not detrimentally affected. The CMP must satisfy the requirements of Public Transport Victoria and Vic Track to ensure that any development of the land, including site works, excavation and earthworks, does not have any impact on the Albion/Werribee Rail Corridors, Bunbury Street Railway Tunnel and Railway Corridor and associated infrastructure.
- For applications for a sensitive use (residential use, child care centre, pre-school centre or primary school), or the construction or carrying out of buildings and works in association with a sensitive use on sites identified as potentially contaminated land listed in the Environmental Site Assessment Table below, an Environmental Site Assessment detailing the likelihood of contamination is required.

Address	Site Assessment with an application for buildings and works in association with a sensitive use	Site Assessment with an application for a sensitive use
23 Ann Street, Footscray	Yes	Yes
320 Barkly Street, Footscray	Yes	Yes
196-198 Barkly Street, Footscray	Yes	Yes

MARIBYRNONG PLANNING SCHEME

Address	Site Assessment with an application for buildings and works in association with a sensitive use	Site Assessment with an application for a sensitive use
307 Barkly Street, Footscray	Yes	Yes
315 Barkly Street, Footscray	Yes	Yes
11 Blackston Street, Footscray	Yes	Yes
101-103 Buckley Street, Seddon	Yes	Yes
108-110 Buckley Street, Footscray	Yes	Yes
112 Buckley Street, Footscray	Yes	Yes
114-120 Buckley Street, Footscray	Yes	Yes
119 Buckley Street, Seddon	Yes	Yes
121-127 Buckley Street, Seddon	Yes	Yes
1-41 Buckley Street, Seddon	Yes	Yes
26-34 Buckley Street, Footscray	Yes	Yes
46 Buckley Street, Footscray	Yes	Yes
48 Buckley Street, Footscray	Yes	Yes
50 Buckley Street, Footscray	Yes	Yes
52-54 Buckley Street, Footscray	Yes	Yes
56-70 Buckley Street, Footscray	Yes	Yes
93 Buckley Street, Seddon	Yes	Yes
3 Droop Street, Footscray	Yes	Yes
5 Droop Street, Footscray	Yes	Yes

MARIBYRNONG PLANNING SCHEME

Address	Site Assessment with an application for buildings and works in association with a sensitive use	Site Assessment with an application for a sensitive use
101-103 Geelong Road, Footscray	Yes	Yes
147 Geelong Road, Footscray	Yes	Yes
149 Geelong Road, Footscray	Yes	Yes
151-153 Geelong Road, Footscray	Yes	Yes
155-157 Geelong Road, Footscray	Yes	Yes
43-45 Hopkins Street, Footscray	Yes	Yes
49 Hopkins Street, Footscray	Yes	Yes
75 Moore Street, Footscray	Yes	Yes
34 Moreland Street, Footscray	Yes	Yes
36 Moreland Street, Footscray	Yes	Yes
38-40 Moreland Street, Footscray	Yes	Yes
82 Napier Street, Footscray	Yes	Yes
41 Victoria Street, Footscray	Yes	Yes
1-3 Whitehall Street, Footscray	Yes	Yes
5 Whitehall Street, Footscray	Yes	Yes
7 Whitehall Street, Footscray	Yes	Yes
77 Whitehall Street, Footscray	Yes	Yes
1 Wingfield Street, Footscray	Yes	Yes
11-17 Wingfield Street, Footscray	Yes	Yes

MARIBYRNONG PLANNING SCHEME

Address	Site Assessment with an application for buildings and works in association with a sensitive use	Site Assessment with an application for a sensitive use
19-21 Wingfield Street, Footscray	Yes	Yes
28 Wingfield Street, Footscray	Yes	Yes
3-9 Wingfield Street, Footscray	Yes	Yes
1a Wingfield Street, Footscray	Yes	Yes
1 Wingfield Street, Footscray	Yes	Yes
11-17 Wingfield Street, Footscray	Yes	Yes
19-21 Wingfield Street, Footscray	Yes	Yes
28 Wingfield Street, Footscray	Yes	Yes
3-9 Wingfield Street, Footscray	Yes	Yes
1a Wingfield Street, Footscray	Yes	Yes
4 Yewers Street, Footscray	Yes	Yes
234-240 Barkly Street, Footscray	No	Yes
41-43 Moreland Road, Footscray	No	Yes
1-11 Moreland Street, Footscray	No	Yes
62 Nicholson Street, Footscray	No	Yes
2 and 4 Saltwater Place, Footscray	No	Yes

The environmental site assessment should be conducted by a suitably qualified professional, to the satisfaction of the Responsible Authority, in accordance with the National Environmental Protection Measure (assessment of site contamination) 1999, as amended. The assessment should:

- Assess soil and groundwater contamination, including the potential for vapor intrusion.
- Detail as appropriate:
 - The nature of the previous land use or activities on the subject site.

- How long the land use or activity took place on the subject site and where the site is contaminated.
- A description of the contamination on, under or from the subject site and its extent.
- How any contamination is being managed or may be managed to prevent any detrimental affect on the use and development of the subject site or adjoining land or on buildings and works.
- Advise (having regard to the proposed use, development or buildings and works) whether:
 - an Environmental Audit is required, or
 - the level of contamination will prevent the proposed use or development of the land and the level of contamination cannot be remediated to a level that would enable the proposed use or development, or
 - subject to appropriate remediation, the land would be suitable for the proposed use or development.

If land is not identified in the table this does not mean that it is not potentially contaminated and the Responsible Authority may still require additional information (consistent with the above listed application requirements) to be provided as part of a planning permit application.

7.0

24/10/2024
C185mari

Notice and review

An application to construct a building or construct or carry out works is exempt from the notice requirements of Section 52(1) (a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act unless:

- it exceeds the preferred maximum building heights contained within Clause 5 of this schedule, and is not in respect of land located in Precinct 2G, or
- it is located within Precinct 7.

An application to use land is exempt from the notice requirements of Section 52(1)(a), (b) and (d), the decision requirements of Section 64(1), (2) and (3) and the review rights of Section 82(1) of the Act. This does not apply to:

- A use within 30 metres of land (not a road) which is in a residential zone, land used for a hospital or an education centre or land in a Public Acquisition Overlay to be acquired for a hospital or an education centre.
- An application to use the land for the purposes of a Gambling premises, Hotel, Nightclub, Place of assembly or Bar.
- An application to use the land for purposes other than a dwelling in Precincts 7 and 1A.

8.0

27/05/2019
C160mari

Decision guidelines

The following decision guidelines apply to an application for a permit under Clause 37.08, in addition to those specified in Clause 37.08 and elsewhere in the scheme, which must be considered, as appropriate, by the responsible authority:

- The Footscray CAA Structure Plan (Maribyrnong City Council, 2013)
- Footscray Skyline Study: Updated Report, SJB Urban, (October 2012)
- Footscray Central Activities Area Car Parking Study (GTA Consultants, April 2013)
- Whether the use is consistent with the objectives for the precinct.
- The interim use of those parts of the land not required for the proposed use.
- Whether the use is compatible with adjoining and nearby land uses.
- The interface with adjoining Precincts or sites identified for future redevelopment, and the need to manage potential conflicts between existing uses (especially residential uses) and new uses coming into the Precinct.
- The extent that the layout and design of the new use or development minimises the potential for off-site impacts, including from noise, fumes, odour or vibrations, ensuring that:
 - existing uses are not compromised by a new development, or
 - a new development is designed to address amenity impacts from existing uses.

- The potential for contamination to have adverse effects on the future land use and any remediation works or ongoing requirements relating to the use and management of the land.
- The views of VicTrack and Public Transport Victoria.

9.0
27/05/2019
C160mari

Signs

Sign requirements are at Clause 52.05.

Precinct	Advertising Category
Precinct 1: Central	Category 1 – Minimum limitation
Precinct 2: Station:	
Sub-Precincts 2A, 2B, 2D, 2E AND 2I	Category 1 – Minimum limitation
Sub-Precinct 2C	Category 2 – Low limitation
Sub –Precinct 2F, 2G AND 2H	Category 3 – Medium limitation
Precinct 3: Victoria University	Category 3 – Medium limitation
Precinct 4: Riverside:	
Sub-Precinct 4B	Category 2 – Low limitation
Sub-Precincts 4A and C	Category 3 – Medium limitation
Precinct 5 Joseph Road Precinct	
Land within 15m from Hopkins St frontage	Category 1 – Minimum limitation
Land east of Maribyrnong Street or within 15m west of Maribyrnong Street, and not within 15m from Hopkins St frontage	Category 3 – Medium limitation
Remainder of precinct	Category 2 – Low limitation
Precinct 6: Peripheral Activity	Category 2 – Low limitation
Precinct 7: Neighbourhood	Category 3 – Medium limitation
Precinct 8: Civic	Category 3 – Medium limitation

The following requirements should be met to the satisfaction of the responsible authority: Signage should:

- Be coordinated across the centre;

- Not dominate the streetscape or increase visual clutter; and
- Respect the scale, architecture and character of the building or public space.

10.0
12/12/2024
C184mari

Other provisions of the scheme

Clause 13.04-1L Potentially contaminated land.

11.0
27/05/2019
C160mari

Background documents

Footscray CAA Structure Plan (Maribyrnong City Council, 2013)

Footscray Central Activities Area Car Parking Study (GTA Consultants, April 2013)

Footscray Retail Study, Collie & Renaissance Planning, (August 2009)

Footscray Skyline Study: Updated Report, SJB Urban, (October 2012)

Joseph Road Structure Plan (December 2007)

Footscray Station Planning and Urban Design Framework (August 2009).

Footscray Station PUDF Addendum Report (Binks Ford Site, April 2011)

Maribyrnong River Valley Design Guidelines